

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, February 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27505 against Police Officer John Laird Tax Registry No. 938806. The case was conferenced on February 13, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the Guilty plea with a forfeiture of ELEVEN (11) vacation days for DADS No. 2022-27505.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27505
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, LAIRD	FIRST JOHN	M.I. J	COMMAND 112 PRECINCT
SHIELD NO. 14608	TAX REGISTRY NO. 938806	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer John LAIRD, on or about September 18, 2021, at approximately 1230, while assigned to 112 PCT and on duty, in the vicinity of the 112th Precinct stationhouse, Queens County, used offensive language, in that PO LAIRD made remarks based upon the perceived mental health of § 87(2)(b) by insisting that § 87(2)(b) had "something going on," and asked § 87(2)(b) if she was "seeing" things.	DISMISSED	VACATION DAYS 11.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer John LAIRD, on or about September 18, 2021, at approximately 1230, while assigned to 112 PCT and on duty, in the vicinity of the 112th Precinct stationhouse, Queens County, was discourteous, in that PO LAIRD spoke discourteously to § 87(2)(b) by insisting that § 87(2)(b) had "something going on," and asked § 87(2)(b) if she was "seeing" things, without police necessity.	PLEADED GUILTY	
3. Police Officer John LAIRD, on or about September 18, 2021, at approximately 1230, while assigned to 112 PCT and on duty, in the vicinity of the 112th Precinct stationhouse, Queens County, abused their authority as a member of the New York City Police Department, in that PO LAIRD threatened to remove § 87(2)(b) to the hospital without sufficient legal authority.	PLEADED GUILTY	

DC Barbis 4/3/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab... 5/29/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 15, 2024

Re: CCRB Case No. 202105894 (Incident Date: September 18, 2021) involving Police Officer John Laird, Tax No. 938806 (DADS No. 2022-27505)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer John Laird and has determined that his actions do not warrant the proposed penalty.

In regards to DADS No. 2022-27505, the Police Commissioner agrees with CCRB's recommendation to dismiss Specification No. 1 and their substantiated findings for Specifications Nos. 2 and 3. However the Police Commissioner intends to dismiss the Charges and Specifications and issue a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for Specifications Nos. 2 and 3. The Police Commissioner utilized mitigated penalties for both Specifications and directs the penalties shall run concurrently since they arose out of the same incident.

Therefore, the Police Commissioner intends to dismiss all the Charges and Specifications in this matter and direct the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) penalty days, as a disciplinary penalty.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 21, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202105894 PO John Laird 938806 (DADS 2022-27505):

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief, Anthony Marino, dated May 15, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Sergeant Laird and impose a Command Discipline Schedule “B” with the forfeiture of five (5) vacation days. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

The entirety of the incident is captured on PO Laird’s Body Worn Camera (BWC). PO Laird clearly asks § 87(2)(b) several times whether or not there was “something going on” and whether there were family members able to speak with PO Laird about her mental status/history. Furthermore, PO Laird asks § 87(2)(b) whether she was seeing things. PO Laird’s comments are in direct violation of Patrol Guide 304-06 as they were discourteous. Additionally, the BWC captures PO Laird repeatedly threatening to remove § 87(2)(b) to the hospital, an action which would have been entirely unjustified. Chief Marino’s letter states that you agreed that PO Laird’s statements that day were unjustified and warrant a penalty.

The CCRB asks that you impose the penalty agreed between the CCRB and the Respondent. PO Laird admitted guilt on the record to Specifications 2 and 3 and the forfeiture of eleven (11) vacation days. There are no mitigating factors present which would warrant the mitigated penalties to be applied in this matter, and Deputy Chief Marino’s letter does not cite any mitigating factor. PO Laird did not mitigate the situation at all. On the contrary, PO Laird’s misconduct escalated the situation therefore making the presumptive penalties appropriate in this matter.

Based upon the foregoing, the Police Commissioner’s decision is not reasonable under the circumstances. The CCRB would request that the Charges and Specifications against PO Laird not be dismissed and the agreed upon plea agreement be approved.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board